

**SYNTHETIC TRAINING RECORD — FICTIONAL PARTIES, EVENTS,  
COURTS, AND IDENTIFIERS — NOT A REAL FILING**

**SEALED FICTIONAL TRAINING MATERIAL — ACCESS REQUIRES  
AN EXACT AUTHORIZED DISCLOSURE GRANT**

# **Sealed Petition for Writ of Mandamus**

**United States Court of Appeals for the Fourth Circuit**

**In re Cinder Lake Health Network, Inc., Petitioner**

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A05

Filed: 2026-04-01

## **Caption and requested writ**

Petitioner seeks vacatur of categorical waiver and complete production, with remand for item-specific review. This sealed page corresponds to page 1 of the public petition.

The sealed prayer mirrors the public petition exactly so that protected details do not produce broader relief. Cinder Lake asks to remove the categorical waiver and forced complete production, then return individual claims to the district court. The sealed facts help the panel evaluate that request; they do not authorize adjudication of Calder’s employment claim or any log item beyond the challenged provisions.

## **Nature of the original proceeding**

The sealed petition invokes 28 U.S.C. § 1651(a) and Rule 21 and identifies the district action. Confidential content is included only where necessary to test the asserted privilege.

The protected petition uses the same original-writ jurisdictional theory as its public counterpart. Its sealed status does not create appellate jurisdiction or relax *Cheney v. U.S. District Court*, 542 U.S. 367, 380–81 (2004). Identifying the district action, the real party in interest, and the originating judge satisfies the procedural framework, while the confidential comparison is reserved for authorized judicial review.

## Questions presented

The questions concern actual disclosure, the scope of Rule 502(a), the seven-day production command, and the limit between protected communications and discoverable facts.

Four distinct inquiries remain even under seal: what the public letter said, what the protected memorandum contains, whether the production timing defeats ordinary review, and how narrow relief can preserve factual discovery. The petition does not ask the panel to infer waiver from the act of sealing or privilege from a label; the contents and legal predicates are separately analyzed.

## **Sealed waiver statement**

The August 21 letter announced review and remediation but omitted counsel's confidential assessment that coding samples showed inconsistent internal escalation, the interview summaries supporting that assessment, and counsel's legal-risk recommendations.

The comparison demonstrates the asserted line. The public letter states only that a review occurred and remedies were adopted. The memorandum records confidential employee accounts, counsel's selection of significant facts, legal-risk judgments, and recommended options. Presenting those particulars under seal lets the panel test the public petition's characterization without placing them in the public counterpart.

## **Underlying-action boundary**

Calder's retaliation allegations remain disputed and undecided. The sealed discussion supplies privilege context, not proof that either party prevails on § 3730(h).

The protected discussion explains why investigation content is relevant to the discovery issue, not why Calder should win or lose on retaliation. Interview accounts may bear on billing practices, but the opinion ultimately governing the civil claim must rest on admissible evidence and proper burdens. The writ asks only who may see counsel's communications before individualized privilege rulings.

## **Investigation chronology and sources**

Counsel interviewed billing, compliance, and audit personnel at management's direction; collected sample claims; separated business records from communications; and recorded legal impressions in the memorandum.

Management directed employees to speak with counsel for the purpose of obtaining legal advice. Counsel used ordinary billing material and witness facts, but organized them through legal questions and recorded mental impressions. The underlying claims data and employees' firsthand knowledge remain available from their sources. The sealed memorandum's communicative and analytical form is what requires separate treatment.

## **Rule 502(d) timing**

The January 9 order protects later litigation disclosures and clawback procedure. It does not change the status of the August 21 pre-suit letter or make the sealed interviews public.

The sealed copy confirms that the Rule 502(d) order addresses later production, clawback, and nonwaiver procedure. It contains no term purporting to rewrite the August 2025 event. Keeping the complete order available under seal allows the panel to reject both extremes: the order neither immunizes an actual pre-suit disclosure nor creates waiver where the public letter disclosed none.

## **District discovery dispute**

The sealed record shows request-by-request objections, source classifications, and the district sequence. Ashe retained the complete memorandum and log as protected offline review copies before the proposed exhibits were lodged, but she did not receive the twenty underlying logged items or attachments.

The review-copy exchange allowed Calder's counsel to test the privilege assertions without turning the underlying source communications, drafts, or work product into merits production. The later public motion, notice, offline lodgment, and redacted counterparts preserved access procedure while the dispute was litigated. None of those steps delivered the twenty underlying items compelled on March 25.



## **Orders and preservation efforts**

The sealed petition reproduces the challenged categorical reasoning and explains why reconsideration and district-stay requests could not prevent the April 1 disclosure.

The sealed reproductions show that the district court treated a common subject as sufficient even though the protected memorandum contains materially more than the public letter. They also document that Cinder Lake asked for reconsideration and a pause before seeking mandamus. This procedural history supports appropriateness without suggesting that exhaustion is an inflexible jurisdictional requirement.

## **Irreparable disclosure**

The March 25 command would newly deliver the twenty underlying communications, full interview records, drafts, work product, and attachments for litigation use. Ashe's protected review of the memorandum and log did not provide those source materials.

The newly compelled items contain verbatim communications, full drafting history, attachments, and work product beyond the summaries and descriptions already available to Ashe. Calder could not unknow those materials after merits production. The stay therefore covers the whole compelled protected set, while leaving her free to obtain underlying facts independently through witnesses and ordinary business records.

## **No other adequate means**

A later appeal could address legal error but could not undo Calder's first compelled access to the underlying logged communications, drafts, work product, and attachments. The petition relies on that record-specific timing, not a general exception for every privilege order.

Ordinary appeal may later correct a legal ruling, but it cannot reverse adversary acquisition of the twenty underlying items that Ashe's protected memorandum-and-log review did not supply. The sealed record makes that difference concrete. Cinder Lake accepts *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 108–11 (2009), and relies on the April 1 first-compelled-production risk only as an exceptional record, not a categorical privilege exception.

## **Clear and indisputable right**

The sealed comparison confirms that the public letter and confidential memorandum are materially different: one announces general actions; the other records communications and legal analysis.

Side-by-side review under seal shows no passage in the public letter that conveys the memorandum's interviews, legal analysis, or advice. The district ruling instead inferred content from the announced existence of review and remediation. On this record, the petition says the missing disclosure requirement makes the categorical conclusion more than a debatable line-drawing disagreement.

## **Appropriateness of relief**

Narrow relief preserves only contested protected material, allows discovery of original facts to continue, and returns individual claims to the district court.

Narrow relief is feasible because the sealed record separates protected communications from ordinary sources. The district court can review entries, require better descriptions, test whether particular facts are independently obtainable, and order production of nonprotected material. Appellate intervention need not choose every claim; it need only remove the premise that made individual analysis unnecessary.

## **Rule 502(a) analysis**

The sealed communications were not intentionally disclosed in August 2025. Neither mentioning a review nor announcing remediation reveals the substance needed to trigger subject-matter waiver.

The complete communications confirm that no protected passage was sent to the oversight office. Rule 502(a)'s intentional-disclosure requirement therefore cannot be met by subject overlap alone. The sealed filing does not argue that the public letter itself is privileged; it accepts the letter's public status and uses the confidential comparison solely to show what the letter left undisclosed.

## **Communications and facts**

The source documents identify employees, ordinary billing records, and chronology that may be discovered independently. Counsel's questions, communications, selection, and impressions remain separately protected.

Interview witnesses can be deposed about what they observed, and claim records can be requested from business custodians. What employees said confidentially to counsel, why counsel asked particular questions, and how counsel evaluated the information present separate concerns. The sealed petition gives the panel enough detail to apply *Upjohn Co. v. United States*, 449 U.S. 383, 389–97 (1981), without converting facts into privileged property.

## **Fourth Circuit authorities**

The petition labels *In re Fluor Intercontinental, Inc.*, No. 20-1241, 2020 WL 1472076 (4th Cir. Mar. 25, 2020) (unpublished), nonprecedential and uses it only for the close factual analogy of no disclosed communication and a seven-day production command.

The petition treats published Supreme Court and Fourth Circuit authorities as governing and uses *Hawkins v. Stables*, 148 F.3d 379, 383–85 (4th Cir. 1998), for burden and disclosure principles. Fluor remains expressly unpublished and nonprecedential. Its factual resemblance cannot replace Cheney’s test or Rule 502’s text; it only illustrates why a seven-day complete-production command involving undisclosed communications may present an exceptional timing problem.



## **Requested disposition**

The same limited relief stated publicly is requested under seal; no blanket protection from related discovery and no ruling on Calder's retaliation claim is sought.

Even with confidential context, Cinder Lake disclaims a writ barring every request touching billing or remediation. The appropriate disposition protects only the categorical waiver and complete production challenged here. On remand, Calder may refine requests, Cinder Lake must support claims, and the district court may use in camera or other controlled review as permitted.

## **Rule 21 compliance and service**

The sealed petition is accompanied by an essential-record appendix, public counterparts, access certificate, respondent service, and certification of delivery to the trial judge.

The sealed package completes the same Rule 21 requirements as its public counterpart and adds no hidden procedural shortcut. The motion identifies the requested seal, the certificate identifies authorized recipients, and the two appendices provide public and sealed versions of the essential record. Service on Calder and delivery to the trial judge are recorded independently, so acceptance rests on the materials actually filed.

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